

Franciscus Dylan Rosario
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50,
inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**EX PARTE APPLICATION FOR
ORDER SHORTENING TIME ON
MOTION UNDER CCP §425.16(g);
DECLARATION OF PLAINTIFF;
[PROPOSED] ORDER**

(Cal. Rules of Court, rules 3.1200–3.1207; Local Rules of
San Francisco Superior Court, rule 9)

Anti-SLAPP Hearing:

Date: May 12, 2026

Time: 9:30 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

1 **EX PARTE APPLICATION FOR ORDER SHORTENING TIME**

2 TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

3 PLEASE TAKE NOTICE that on **Monday, April 27, 2026, at 11:00 a.m.**, or as soon thereafter
4 as the matter may be heard, in Department 302 (ex parte calendar), Plaintiff Franciscus Dylan
5 Rosario will and hereby does apply **ex parte** for an order shortening time for hearing of Plaintiff's
6 contemporaneously-filed Motion for Order Permitting Specified Discovery under Code Civ. Proc.,
7 § 425.16(g).

8 Plaintiff requests hearing on April 30, 2026, or, alternatively, May 1, 2026, to permit narrowly
9 specified discovery before the May 12, 2026 anti-SLAPP hearing.

10 Grounds:

- 11 1. Regular 16-court-day notice cannot be given between April 24 and May 12 without defeating
12 the Motion;
- 13 2. Absent shortened time, Plaintiff will suffer **irreparable harm** through loss of the opportunity
14 to obtain evidence for prong-two (Cal. Rules of Court, rule 3.1202(c));
- 15 3. Notice was given to Defendant's counsel in compliance with Cal. Rules of Court, rule 3.1203
16 no later than 10:00 a.m. on April 23, 2026; and
- 17 4. No other readily available remedy exists.

1 **DECLARATION OF PLAINTIFF FRANCISCUS DYLAN ROSARIO**

2 I, Franciscus Dylan Rosario, declare:

- 3 1. I am Plaintiff, pro per.
- 4 2. The Special Motion to Strike is set for hearing May 12, 2026, 9:30 a.m., Department 302.
- 5 3. I am filing today a Code Civ. Proc., § 425.16(g) Motion for narrowly specified discovery
- 6 (2-hour O’Connell depo on authentication topics; 8 four-corner RFPs).
- 7 4. Regular-notice filing places the earliest hearing past May 12, defeating the Motion.
- 8 5. **Irreparable harm.** Without shortened time: the Code Civ. Proc., § 425.16(g) Motion is un-
- 9 timely as a practical matter; I cannot test foundation, personal knowledge, and authentication
- 10 of the O’Connell Declaration; I cannot meet my *Sweetwater* prong-two burden; the SLAPP
- 11 motion would be decided on an un rebutted record.
- 12 6. **CRC 3.1203.** Notice of this ex parte application was served electronically on Defendant’s
- 13 counsel on or before 10:00 a.m., April 23, 2026.
- 14 7. No prior ex parte application for this relief has been made.
- 15 8. No discovery has been or will be served before the Court’s order.
- 16 9. Proposed schedule: hearing April 30 or May 1, 2026; if granted, 10-day shortened RFP
- 17 response; deposition completed by May 8, 2026.

18 I declare under penalty of perjury under the laws of the State of California that the foregoing is

19 true and correct. Executed this 24th day of April, 2026, at Rohnert Park, California.

Dated: April 24, 2026



/s/ *Franciscus Dylan Rosario*

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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[PROPOSED] ORDER SHORTENING TIME

Good cause appearing, **ORDERS:**

1. Time is **SHORTENED**.
2. The Motion shall be heard on _____, 2026, at _____ in Department 302.
3. Opposition due _____, 2026; reply due _____, 2026.

Dated: _____

Hon. Joseph M. Quinn
Judge of the Superior Court